

January 26, 2010



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

DOT-SP 11759
(SEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - b. This special permit authorizes the transportation in commerce of hydrogen fluoride, a class 8 material poisonous by inhalation in certain DOT specification tank cars equipped with alternative pressure relief devices and without metal jackets. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.31(e)(2) in that a metal jacket is required and § 179.15(a) in that alternative pressure relief devices are not authorized, except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008.

January 26, 20106. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen fluoride, anhydrous (Poisonous Inhalation Hazard Zone C)	8	UN 1052	I

7. SAFETY CONTROL MEASURES:

a. PACKAGINGS: Packagings authorized are DOT specification 112S200W, 112S400W, 112S340W or 112S500W tank cars equipped with pressure relief devices rated as specified in paragraph 8(a) below. In addition, metal jackets required by § 173.31(e) (2) are waived.

b. MARKING: Each tank car operating under the terms of this special permit must be marked "DOT-SP 11759" in letters and numeral at least 4 inches high on a contrasting background above the specification marks. (see paragraph 8.e. for exceptions)

c. RETESTING: Each tank car operating under the terms of this special permit must be requalified in accordance with § 180.509 no later than the date of the next hydrostatic tank test.

8. SPECIAL PROVISIONS:

a. Each tank car must be equipped with a pressure relief device as specified below:

Tank car Specification	Minimum Flow Rated Capacity (SCFM)	Start-to-discharge Pressure (PSIG)
112S200W	1656	150
112S340W	2721	255
112S400W	3178	300
112S500W	3939	375

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- b. Each DOT specification 112S200W tank car must be constructed with a tank test pressure of 400 psig.
 - c. Each DOT specification 112S200W tank car operating under the terms of this special permit must be refitted with a pressure relief device having a minimum rated flow capacity of 3178 scfm and a start-to-discharge pressure of 300 psig and remarked to a DOT 112S400W tank car no later than March 1, 2001.
 - d. No new construction of DOT112S200W tank cars is authorized.
9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
10. MODAL REQUIREMENTS: None as a condition of this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

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materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Acting Associate Administrator for Hazardous Materials Safety
Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM/sln